IN THE NATIONAL COMPANY LAW TRIBUNAL
AHMEDABAD
DIVISION BENCH
COURT - 1

ITEM No.202

C.P.(CAA)/13(AHM)2023 in C.A.(CAA)/65(AHM)2022

Proceedings under Section 230-232

IN THE MATTER OF:

Sachin Healthcare Pvt Ltd **.....Applicant**
CTX Lifesciences Pvt Ltd

.....Respondent

Order delivered on: 31/07/2023

Coram:

Mr. Shammi Khan, Hon'ble Member(J)
Mr. Kaushalendra Kumar Singh, Hon'ble Member(T)

PRESENT:

For the Applicant :
For the Respondent :

ORDER

The case is fixed for pronouncement of the order. The order is pronounced in the open court, vide separate sheet.

-sd- -sd-

KAUSHALENDRA KUMAR SINGH
MEMBER (TECHNICAL)

SHAMMI KHAN
MEMBER (JUDICIAL)

IN THE NATIONAL COMPANY LAW TRIBUNAL
AHMEDABAD BENCH
DIVISION BENCH
COURT-1

CP (CAA) No.13/NCLT/AHM/2023
IN
CA(CAA)No.65/NCLT/AHM/2022

[In the matter of Sections 230-232 and read with other applicable provisions of the Companies Act, 2013 read with The Companies (Compromises, Arrangements, and Amalgamations) Rules, 2016]

In the matter of Scheme of Amalgamation

of

Sachin Health Care Private Limited
(Petitioner Company 2/ Transferor Company)

With

CTX Life Sciences Private Limited
(Petitioner Company 1/ Transferee Company)

and

Their respective Shareholders and Creditors

Order pronounced on 31.07.2023

Coram:
Mr. Shammi Khan,
Hon'ble Member (Judicial)

Mr. Kaushalendra Kumar Singh,
Hon'ble Member (Technical)

MEMO OF PARTIES

CTX Life Sciences Private limited.
A company registered under the Companies Act
Having its registered office at
Survey No.91, Opp. Navin Fluorine,
Udhna Navsari Road,
Gujarat, India – 395023 ...Petitioner Company 1
Transferee Company

Sachin Healthcare Private limited
A company registered under the Companies Act
Having its registered office at
Survey No.91, Opp. Navin Fluorine
Udhna Navsari Road, Bhestan,
Gujarat, India – 395023 ...Petitioner Company 2
Transferor Company

Appearance:

For the Petitioners : Mr. Ravi Pahwa, Advocate
For Thakkar and Pahwa, Advocates

O R D E R

1. This joint Company Petition has been filed by the Petitioner Companies namely M/s. Sachin Healthcare Pvt. Ltd. & Ors. and CTX Life Sciences Private Limited under Sections 230-232 of the Companies Act, 2013 (for brevity the Act) read with Companies (Compromise, Arrangement and Amalgamations) Rules, 2016 for seeking sanction of the Scheme of Amalgamation of Sachin Healthcare Private Limited (hereinafter referred to as **Transferor Company**) into CTX Life Sciences Private Limited (hereinafter referred to as **Transferee Company**) and their respective shareholders and creditors with effect from the Appointed Date i.e. 01.04.2022, as mentioned in the Scheme.

2. An affidavit in support of the above petition has been sworn by Mr. Vishadkumar Jariwala and Mr. Bipinchandra Kabutarwala on behalf of the both the petitioner companies who are authorized representatives of both the petitioner companies. The above named authorized representatives have been authorized vide board resolution dated 05.09.2022.

3. From the records, it is seen that the first motion seeking directions for convening/dispensing of the meeting of the Equity Shareholders, Secured Creditors and Unsecured Creditors of both the Petitioner Companies was allowed vide order dated 09.01.2023.

4. The Petitioner Companies have filed 2nd motion joint petition before this Tribunal within the time prescribed. Vide order dated 27.02.2023, this Adjudicating authority has directed the petitioner to issue notices to the statutory authorities and publication in the newspapers in English Daily "Indian Express" and translation thereof in Gujarati Daily "Sandesh", both having circulation in Surat. The Petitioner Companies filed an affidavit of service of notice to the statutory authorities viz., (1) Central Government through Regional Director. (2) Registrars of Companies. (3) Income Tax Authority. (4) Official Liquidator. Both the Petitioner Companies have filed common compliance affidavit as regards to publication in the Newspapers having circulation in Surat on 14.04.2023.

5. That the Regional Director, North Western Region, MCA and ROC, Ahmedabad have filed observations vide report dated 5th April 2023, which are summarized as under:-

a) *As per para 2(c) the RD observed that the petitioner Transferee Company will be required to pay the difference of amount fees which is payable on the enhanced authorized capital of Rs. 31,50,00,000/- as on date and the total payable amount of fees which have already been paid by all the petitioners companies at the time of registration / increase in authorized capital as the case may be. Therefore, Section 232(3)(I) of the Companies Act, 2013 should be complied with by the petitioner companies. The petitioner companies should comply with Sec. 232(3)(i) of the Act;*

b) *As per para 2(e), the RD observed that vide earlier order of this Adjudicating authority dated 09.01.2023 in CA(CAA) 65 of 2022, it is stated that the applicant companies do not have any secured creditors. However, as per charge index available on MCA-21 portal the petitioner Transferee company have one secured creditor namely IDBI Bank Ltd., The petitioner company should clarify regarding the same by placing on record all the relevant facts in this regard.*

c) *The petitioner companies should pay the amount of legal fees/ costs to the Central Government.*

6. The Petitioner Companies have filed a common affidavit in reply dated 25.04.2023 in response to the report of Regional Director. The relevant part is reproduced hereunder.

a) *With regards to observation contained in Para 2(c), it is submitted that the petitioner companies undertake to*

comply with the provisions of Section 232(3)(i) of the Companies Act, 2013.

b) *With regards to observation contained in Para 2(e) of the Report, it is submitted that the Petitioner Transferee Company had availed cash credit facility from IDBI Bank Limited. As on the cut off date i.e. 31.08.2022, the said cash credit facility was not utilized by the Transferee Company and therefore, as on the cut-off date, IDBI Bank Limited was not the secured creditor of the Transferee Company. A copy of the statement of IDBI Bank showing the debit balance as on the cut-off date along with copy of No Objection Letter given by IDBI Bank to the Scheme of Amalgamation are produced along with the affidavit.*

7. So far as representation made by RoC is concerned, it is submitted that as per the report of RoC, there are no complaints against the Petitioner Companies and there is also no complaint/ representation against the Scheme of Amalgamation of the Companies. Without prejudice, a detailed reply is submitted, a copy of which is annexed at Annexure-B to the Report of RoC.

8. The Official Liquidator by filing his report dated 27th March 2023 sought following directions:

a) *That directions to be issued to preserve the books of accounts, papers and records of the Transferor Company and not to dispose of the same without prior permission of the Central Government as per the provisions of Section 239 of the Companies Act, 2013 and to ensure statutory compliance of all applicable laws and also on sanctioning of*

the present Scheme, the Transferor Company shall not be absolved from any of their statutory liabilities, in any manner.

9. In response to the Official Liquidator observations, the Petitioner Companies filed affidavit in reply dated 26.4.2023 and the Petitioner Transferee Company undertook to preserve the books of accounts, papers and records of Petitioner Transferor Company and not to dispose of them without prior permission from the Central Government. Further it is submitted that Scheme nowhere proposes to absolve the Transferor Company from any of the statutory authorities.

10. That Income Tax Department have filed their observations vide report dated 08th May 2023, which are summarized as under:-

a) *As per the report, the outstanding demand as on 08.05.2023 in the case of petitioner Transferee Company was Rs. 11,76,540/- for the A.Y. 2018-19 and Rs. 1,62,52,650/- for the A.Y. 2020-21. The outstanding demand for the A.Y. 2018-19 was paid by the Transferee Company on 21.04.2022. As far as outstanding demand for the A.Y. 2020-21 is concerned, it was rectified to Rs. NIL vide office order dated 18.02.2023 passed under Section 154 of the Income Tax Act.*

b) *As per the report, the outstanding demand in the case of petitioner Transferor Company is Rs.3,850/- for the AY 2020-21.*

11. The Petitioner Companies have placed on record the Valuation Report and also filed their respective audited financial

statements as on 31st March 2022 and unaudited financial statements as on 31st August 2022 which are annexed with the petition. The certified copies of respective Board Resolutions of both the Petitioners Companies approving the Scheme of Amalgamation are annexed with the application.

12. In compliance with the proviso to sub-section (7) of Section 230 of the Companies Act, 2013, both the Petitioner Companies have placed on record the Certificates of the respective Statutory Auditors dated 21st September 2022 confirming that the accounting standards treatment envisaged under the Scheme of Arrangement is, in compliance with the applicable accounting as per in Section 133 of the Companies Act, 2013.

13. Heard the Learned Counsel for the petitioner companies and perused documents placed on record. Considered the approval accorded by the members and creditors of the Petitioner Companies to the proposed Scheme, and the objection filed by the respective regulatory authorities. The petitioner companies have also filed an undertaking to comply with the requirements raised by the respective regulators. Consequently, the sanction is hereby granted to the Scheme under Section 230-232 of the Companies Act, 2013. The Petitioners shall, however, remain bound to comply with the statutory requirements in accordance with law and other directions as pointed out by the Regional Director.

14. As the result, the petition is allowed. The Scheme of Amalgamation is hereby sanctioned which is annexed with this order at Annexure -A and it is declared that the same shall be

binding on both the Petitioner Companies and their respective Shareholders and creditors and all concerned under the Scheme.

15. Notwithstanding the above, if there is any deficiency found or, the violation committed qua any enactment, statutory rule or regulation, the sanction granted by this Tribunal to the scheme will not come in the way of action being taken, albeit, in accordance with the law, against the concerned persons, directors and officials of the Petitioners.

16. While approving the Scheme as above, we further clarify that this order should not be construed as an order in any manner granting exemption from payment of stamp duty, or taxes including income tax, GST etc., or any other charges or payment in accordance with law, or any kind of waiver in respect of any permission/compliance with any other requirement which may be specifically required under any law. It is further clarified that Income Tax Department will be free to examine the aspect of any tax payable as a result of the sanction of the Scheme and sanction of the Scheme of arrangement given hereunder shall not adversely affect the rights of Income Tax Department on any past, present or future proceedings.

17. This Tribunal orders as under:-

i. The Scheme of Arrangement as annexed herewith as **"Annexure A"** is hereby sanctioned and it is declared that the same shall be binding on the Petitioner Companies and their Shareholders and Creditors and all concerned under the Scheme.

ii. The Transferor Company shall, together with all its properties, rights and powers be transferred without further act or deed to the Transferee Company and accordingly the same shall pursuant to Section 232 of the Act, stand transferred to and vest in the Transferee Company for all the estate and interest of the Transferor Company. The schedule of property of the Transferor Company is annexed with this Order at **Annexure –B.**

iii. All licenses, permissions, permits, approvals, certificates, clearances, authorities, leases, tenancy, assignments, rights, claims, liberties, special status, other benefits or privileges and any power of attorney relating to the Transferor Company shall stand transferred to and vested in the Transferee Company, without any further act or deed. The Transferee Company shall be bound by the terms thereof, the obligations and duties thereunder, and the rights and benefits under the same shall be available to the Transferee Company.

iv. All the liabilities and duties of the Transferor Company be transferred, without further act or deed, to the Transferee Company and accordingly the same shall pursuant to Sections 230 & 232 of the Companies Act, 2013, be transferred to and become the liabilities and duties of the Transferee Company.

v. All contracts, agreements, insurance policies, bonds and all other instruments of whatsoever nature or description, of

the Transferor Company, shall stand transferred to and vested in the Transferee Company and be in full force and effect in favour of the Transferee Company and may be enforced by or against it as fully and effectually against the Transferee Company.

vi. All taxes paid or payable by the Transferor Company including existing and future incentives, un-availed credits and exemptions, the benefit of carried forward losses and other statutory benefits, which shall be available to and vest in the Transferee Company. The Tax liability of the Transferor Company shall become a liability of the Transferee Company and any proceedings against the Transferor Company shall continue against the Transferee Company.

vii. All proceedings now pending by or against the Transferor Company in respect of the Transferor Company shall be continued by or against the Transferee Company.

viii. All employees in the service of the Transferor Company shall be deemed to have become the employees of the Transferee Company on a date on which the scheme finally takes effect on the basis that their services shall be deemed to have been continuous and not have been interrupted by reasons of the said transfer and on term and conditions no less favourable than those on which they were/are engaged, as on the Effective Date.

ix. The Petitioner Companies are directed to lodge a copy of this Order and Annexure–A the approved Scheme duly authenticated by the Registrar of this Tribunal, with the concerned Superintendent of Stamps, for adjudication of stamp duty, and pay requisite stamp duty payable, if any, within 60 days from the date of this Order.

x. The legal and expenditure fees for the office of the Official Liquidator are quantified to Rs. 10,000/- in respect of the report of Transferor Company and the fees of the Regional Director are quantified at Rs. 10,000/-. The said fees to the Official Liquidator and Regional Director shall be paid by the Transferee Company.

xi. The Petitioner Companies are further directed to file a copy of this order along with the copy of the Scheme with the concerned Registrar of Companies, electronically, along with e-form INC-28 in addition to physical copy within 30 days from the date of issuance of the certified copy of the Order by the Registry as per relevant provisions of the Act.

xii. The Income Tax Department will be free to examine the aspect of any tax payable as a result of the sanction of the Scheme and if it is found that the Scheme of Arrangement ultimately results in tax avoidance or is not in accordance with the applicable provisions of Income Tax Act, then the Income Tax Dept. shall be at liberty to initiate appropriate course of action as per law. Any sanction of the Scheme of Arrangement under Sections 230-232 of the Income Tax

Act, 2013 shall not adversely affect the rights of Income Tax Department or any past, present or future proceedings and the sanction of the scheme shall not come in its way for the appropriate course of action as per law for the tax liabilities, if any.

xiii. Any person aggrieved shall be at liberty to apply to this Tribunal for any directions that may be necessary.

18. The Company Petition CP (CAA) No. 13 of 2023 connected with CA (CAA) No.657 of 2022 is disposed of in terms of the above order.

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KAUSHALENDRA KUMAR SINGH
MEMBER (TECHNICAL)

SHAMMI KHAN
MEMBER (JUDICIAL)

Vinit/Stenographer

Annexure "A"
Annexure-G

252

SCHEME OF AMALGAMATION

OF

SACHIN HEALTHCARE PRIVATE LIMITED

WITH

CTX LIFESCIENCES PRIVATE LIMITED

PREAMBLE

This Scheme of Amalgamation is presented for the amalgamation of SACHIN HEALTHCARE Private Limited with CTX LIFESCIENCES Private Limited pursuant to sections 230-232 of the Companies Act, 2013.

1. DEFINITIONS

In this Scheme, unless repugnant to the meaning or context thereof, the following expressions shall have the meaning as under:-

1.1 **'Act'** means the Companies Act, 2013, the rules and regulations made thereunder and will include any statutory modification or re-enactment or amendment thereof for the time being in force, except to the extent the provision which are still applicable as per the Companies Act, 1956 and/or any statutory modification or re-enactment or amendment thereof for the time being in force;

COMPANY LAW TRIBUNAL AHMEDABAD

CTX Lifesciences Pvt. Ltd.
Director/Authorised Sign.
For CTX Lifesciences Private Limited
Director/Authorised Signatory

FOR SACHIN HEALTH CARE PVT. LTD
DIRECTOR / AUTHORISED SIGN

NOTARY ASHVINKUMAR PAINTER GOVT. OF GUJARAT

FOR SACHIN HEALTH CARE PVT. LTD
DIRECTOR / AUTHORISED SIGN.

1.2 **'Amalgamation'** means the transfer and vesting of undertaking of the Transferor Company into the Transferee Company in accordance with the Scheme.

1.3 **'Appointed Date'** means the Date of 1st April, 2022.

1.4 **'The Scheme'** means this Scheme of Amalgamation in its present form or with any modifications approved or imposed or directed by Hon'ble National Company Law Tribunal, Ahmedabad.

1.5 **'Transferee Company'** or **'CTX'** shall mean CTX LIFESCIENCES Private Limited CIN No. U24114GJ2004PTC43554 a Company incorporated under the Act, having its registered office at Survey No. 91, Opposite NavinFlourine, Udhna Navsari Road, Surat-395023.

1.6 **'Transferor Company'** or **'SACHIN '** shall mean SACHIN HEALTHCARE Private Limited CIN No. U24100GJ2015PTC085405 a company incorporated under the Act, having its registered office at Survey No. 91, Opposite Navin Flourine, Udhna Navsari Road, Bhestan, Surat- 395023.

For CTX Lifesciences Private Limited

Director/Authorised Signatory

CTX Lifesciences Pvt. Ltd.

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1.7 **'Tribunal'** means the National Company Law Tribunal or any other judicial forum prescribed under the provisions of the Companies Act, 2013 for approving any Scheme of arrangement, compromise or reconstruction of companies under sections 230 to 240 of the Companies Act, 2013.

1.8 **'Undertaking of Transferor Company'** shall mean and include:-

a) all the assets and properties of the Transferor Company as on the Appointed Date.

b) all the debts, liabilities, reserves, duties and obligations of the Transferor Company as on the Appointed Date.

c) without prejudice to the generality of Sub-clause (a) above the undertaking of the Transferor Company shall include, if any, all provisions, funds, moveable and immovable properties, if any, assets including investments, claims, powers, authorities, authorised capital, allotment, approvals, consents, registrations, contracts, enactments, deferred income, arrangements, rights, titles, interest, benefits, advantages, lease-hold rights and other intangible rights, industrial and all licenses, permits, pre &

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post authorizations, quota, rights, trade marks, patents, brands, secret formulae, drawings, research rights and other industrial intellectual properties, imports, telephone/facsimile/telex and other communication facilities, electrical connections, non conventional devices and equipments including computers, hardware/s, software/s, and other electronic equipments and instruments, system of any kind whatsoever, rights and benefits of all agreements and other interests including rights & benefits under various schemes of different taxation laws as may belong to or be available to the Transferor Company, rights and powers of every kind, nature and description of whatsoever probabilities, liberties, easements, advantages, and approval of whatsoever nature and wheresoever situated, belonging to or in ownership, power or possession or control or entitlement of the Transferor Company.

1.9 The expressions which are used in this Scheme and not defined in this Scheme shall, unless repugnant or contrary to the context or meaning hereof, have the same meaning as ascribed to them under the Act and other applicable laws, Articles of Association, rules, regulations, bye-laws, as the case may be, or any statutory

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GOVT. OF GUJARAT (INDIA)

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modifications or re-enactment thereof from time to time.

2. RATIONALE AND OBJECTIVES OF THE SCHEME OF AMALGAMATION

With a view to rationalize and consolidate the business activities of the Companies, the present Scheme is proposed. The proposed merger of SACHIN with CTX will benefit both the Companies in the following manner:-

(a) The merger will consolidate the business activity and will lead to greater efficiency in the overall business and achieve integration of the business operations as well as synergy benefits through combined operations of both the entities.

(b) The contemplated merger will lead to economies of scale which in turn will promote cost efficiency by means of reduction in administrative overheads, reduction in multiplicity of legal and regulatory compliances, and help run the business more effectively and economically resulting in better utilization of resources.

(c) The proposed amalgamation will contribute in fulfilling and furthering the objects of the companies. It will strengthen, consolidate and

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stabilize the business of these companies and will facilitate further expansion and growth of their business.

(d)The proposed amalgamation shall improve the efficiency in cash management, organizational capability from pooling of human capital having skill, talents and vast experience and thereby increase competitiveness in the industry.

(e)The Transferee Company will have benefit of the combined assets and man-power of both the companies. The combined resources will enhance its capability to expand and increase its market share more effectively.

(f) The proposed amalgamation will create enhanced value for shareholders and allow a focused strategy in operations, which would be in the best interest of all its shareholders, creditors and all persons connected with the companies.

3. SHARE CAPITAL

The Authorised, Issued, Subscribed and Paid-up share capital of the Transferee Company **(CTX)**, as on March 31, 2022 is as under:

Particulars	***Amount (INR)***
Authorised share capital	

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3,00,00,000 Voting Equity Shares of ₹ 10/- each	30,00,00,000
TOTAL	**30,00,00,000**
Issued, subscribed and paid-up share capital	
43,68,000 Voting Equity Shares of ₹ 10/- each	4,36,80,000
TOTAL	**4,36,80,000**

The Authorised, Issued, Subscribed and Paid-up share capital of the Transferor Company **(SACHIN),** as on March 31, 2022 and as on date is as under:

Particulars	***Amount (INR)***
Authorised share capital	
15,00,000 Equity Shares of Rs.10/- each	1,50,00,000
TOTAL	**1,50,00,000**
Issued, subscribed and paid-up share capital	
14,83,220 Equity Shares of Rs.10/- each	1,48,32,200
TOTAL	**1,48,32,200**

4. TRANSFER AND VESTING OF UNDERTAKING

4.1 With effect from the Appointed Date and subject to the provisions of this scheme in relation to the mode of transfer and vesting, the Undertaking of the Transferor Company shall, without any further act or deed, be and the same shall stand transferred to and vested in or deemed to have been transferred to or vested in the Transferee Company pursuant to the

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provisions of section 232 and other applicable provisions of the Act.

4.2 With effect from the Appointed Date and subject to the provisions of this Scheme and pursuant to the provisions of Sections 230 to 232 and other applicable provisions of the Act and in relation to the mode of transfer and vesting, all the assets and properties, rights, claims, title, interest, hereditaments and authorities including accretions and appurtenances thereto such as dividends, or other benefits of any nature received of the Transferor Company shall, without any further act, instrument or deed, be and the same shall stand transferred to and/ or vested in or be deemed to have been and stand transferred to or vested in the Transferee Company as a going concern so as to become as and from the Appointed Date, the estate, rights, titles, hereditaments and interests and authorities including accretions and appurtenances thereto such as dividends, or other benefits receivable by that of the Transferee Company.

4.3 With effect from the Appointed Date, and subject to the provisions of this Scheme, all the debts, liabilities, duties and obligations of the Transferor Company, shall also be and shall stand transferred or deemed to have been

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transferred without any further act, instrument or deed to the Transferee Company, pursuant to the provisions of Section 232 of the Act, so as to become as and from the Appointed Date, the debts, liabilities, duties and obligations of the Transferee Company and further that it shall not be necessary to obtain consent of any third party or other person who is a party to the contract or arrangements by virtue of which such debts, liabilities, duties and obligations have arisen, in order to give effect to the provisions of this Clause.

4.4 Without prejudice to the generality of Clause 4.1 above, the undertaking of the Transferor Company shall mean and include inter alia all the relatable properties and assets including land and buildings, plant and machinery, vehicles, current assets, cash and bank balances, stock-in-trade, goodwill and other intangibles, investments, rights, titles, interests, powers, authorities, licenses, contracts, pending arbitration proceeding, tax deducted at source/tax collected at source by vendors/suppliers/ banks/ and receivable by the said company as reflected in Form 26AS on NSDL Income Tax Website as well as those evidences by the valid TDS certificate and other Tax Credits and registrations of whatsoever nature including, without being limited to all

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patents, trademarks, trade names, know-how and other intellectual property rights of whatsoever nature and licenses in respect thereof, privileges, liberties, easements, advantages, benefits, leases, tenancy rights, ownership flats, quota rights, permits, approvals, authorizations, right to use of telephone, telexes, fax machines, e-mail, internet, electricity connections, utilities and other services etc. (hereinafter collectively referred to as "the said assets") pertaining to the undertaking of the Transferor Company.

(a) It is expressly provided that in respect of such of the said assets as are movable in nature or are otherwise capable of transfer by manual delivery or by endorsement and delivery, the same shall be so transferred by the Transferor Company and shall become the property of the Transferee Company in pursuance of the provisions of Section 232 of the Act.

(b) In respect of such of the said assets other than those referred to in sub para (a) above, the same shall, as more particularly provided in sub-clause 4.4 above, without any further act, instrument or deed, be transferred to and vested in and/or be deemed to be transferred and vested in the

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Transferee Company on the Appointed Date pursuant to the provisions of Section 232 of the Act.

4.5 Loans or other obligations, if any, due or outstanding inter se between the Transferor Company and the Transferee Company shall stand discharged and there shall be no liability, relating either to principal or to interest after the Appointed Date, in respect of such loans and other obligations.

4.6 With effect from the Appointed Date, all taxes (including but not limited to advance tax, tax deducted at source, minimum alternate tax, credits, securities transaction tax, taxes withheld/paid in a foreign country, value added tax or goods and service tax, as applicable excise duty and tax collected at source, etc.) payable by or refundable to or being the entitlement of the Transferor Company, including all or any refunds or claims shall be treated as the tax liability or refunds/ credits/ claims, as may be of the Transferee Company, and any tax incentives, advantages, privileges, exemptions, credits, tax holidays, remissions, reductions as would have been available to the Transferor Company.

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4.7 The Transferee Company shall be entitled to file/ revise their statutory returns and related tax payment certificates and to claim refunds, advance tax credits etc. as may be required consequent to the implementation of the Scheme.

4.8 The Transferee Company, upon sanction of the Scheme, shall under the provisions of this Scheme be deemed to be authorized to execute any writing for the purpose of giving effect to any contract or arrangement to which the Transferor Company is a party..

4.9 For the avoidance of doubt and without prejudice to the generality of the forgoing, it is clarified that upon coming into effect of the Scheme, all consents, permissions, licenses, certificates, forms, clearances, authorities, powers of attorneys given/issued to/executed in favour of the Transferor Company shall without any further act or deed, stand transferred to the Transferee Company as if the same were originally given by, issued to or executed in favour of the Transferee Company and the Transferee Company shall be bound by the terms thereof, the obligations and the duties there under and the rights and benefits under the same shall be available to the Transferee Company. The Transferee Company shall

For CTX Lifesciences Private Limited

Director/Authorised Signatory

NOTARY ASHVINKUMAR A PAINTER GOVT. OF GUJARAT

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receive relevant approval from the concerned governmental authorities as may be necessary in this behalf.

5. CONTRACTS, DEEDS, BONDS AND OTHER INSTRUMENTS

5.1 Subject to all the provisions of this Scheme, all contracts, deeds, bonds, agreements, arrangements and other instruments of whatsoever nature to which any of the Transferor Company are parties or to the benefit of which the Transferor Company may be eligible and which are subsisting or having effect immediately before the Appointed Date, shall be in full force and effect against or in favour of the Transferee Company as the case may be and may be enforced as fully and effectively as if, instead of the said Transferor Company, the Transferee Company had been a party or beneficiary thereto.

5.2 The Transferee Company may, at any time after thesanction of the scheme, if so required, under any law or otherwise, execute deeds, writings or confirmations or enter into a tri-partite arrangement, confirmation or novation to which the respective Transferor Company will, as may be necessary also be a party in order to give formal effect to this Clause if so required or

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become necessary. The Transferee Company shall, under the provisions of this Scheme, be deemed to be authorised to execute any such writings on behalf of the respective Transferor Company and to carry out or perform all such formalities or compliances referred to above on the part of the Transferor Company.

6. LEGAL PROCEEDINGS

If any suit, petition, appeal, revision or other proceedings of whatsoever nature including Arbitration Proceeding (hereinafter called "the proceedings") by or against the Transferor Company be pending, the same shall not abate, be discontinued or be in any way prejudicially affected by reason of the transfer of the undertaking of the Transferor Company or of anything contained in the Scheme, but the proceedings may be continued, prosecuted and enforced by or against the Transferee Company in the same manner and to the same extent as it would be or might have been continued, prosecuted and enforced by or against the Transferor Company as if the Scheme had not been made. Upon sanction of the Scheme, the Transferee Company shall and may initiate any legal proceedings for and on behalf of the Transferor Company or either of them as the case may be in its own name.

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7. OPERATIVE DATE OF THE SCHEME

The Scheme, set out herein in its present form or with any modification(s) approved or imposed or directed Hon'ble National Company Law Tribunal, shall be effective from the Appointed Date.

8. TRANSFEROR COMPANY'S STAFF, WORKMEN AND EMPLOYEES

All the staff, workmen or other employees, if any, in the service of the Transferor Company immediately preceding the date of sanction of the Scheme continuing from the appointed date, shall become the staff, workmen and employees of the Transferee Company on the basis that:-

8.1 Their services shall be deemed to have been continuous and not have been interrupted by reason of the said transfer.

8.2 The terms and conditions of service applicable to such staff, workmen or employees after such transfer shall not in any way be less favourable to them than those applicable to them immediately preceding the transfer date.

8.3 The Transferee Company shall not vary the terms and conditions of the service of it staff,

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workmen and employees except in the ordinary course of business.

8.4 It is expressly provided that as far as Provident Fund, Gratuity Fund, Superannuation Fund or any other Fund created or existing for the benefit of the staff, workmen and other employees of the Transferor Company is concerned, upon the Scheme becoming effective, the Transferee Company shall (to the extent of the services of the Transferred Employees) stand substituted for the Transferor Company for all purposes whatsoever relating to the administration or operation of such Funds or in relation to the obligation to make contributions to the said Funds in accordance with provisions of such Funds as per the terms provided in the respective Trust Deeds. It is the aim and intent that all the rights, duties, powers and obligations of the Transferor Company in relation to such Funds shall become those of the Transferee Company and all the rights, duties and benefits of the employees of the Transferor Company under such Funds and Trusts shall be protected. It is clarified that the services of the employees of the Transferor Company will also be treated as having been continuous and shall not be treated as having been broken for the purpose of the aforesaid Funds or provisions.

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9. CONDUCT OF BUSINESS BY TRANSFEROR COMPANY TILL THE DATE OF SANCTION OF THE SCHEME

With effect from the Appointed Date and upto the date of sanction of the Scheme:

9.1 The Transferor Company shall carry on and be deemed to have carried on all its business and activities and shall be deemed to have held and stood possessed of and shall hold and stand possessed of all the said assets for and on account of and in trust for the Transferee Company.

9.2 All the profits or incomes accruing to the Transferor Company or losses or expenditure arising or incurred by it shall, for all purposes, be treated as the profits or incomes or losses or expenditure of the Transferee Company as the case may be.

9.3 The Transferor Company shall carry on its business activities, with reasonable diligence, business prudence and shall not, without the written consent of Board of Directors of the Transferee Company, alienate, charge, mortgage, encumber or otherwise deal with the said assets or any part thereof except in the ordinary course of their business except pursuant to any pre-existing obligation

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undertaken by the Transferor Company prior to the Appointed Date.

9.4 The Transferor Company shall not, without the written consent of the Board of Directors of the Transferee Company, undertake any new business.

9.5 The Transferor Company shall not vary the terms and conditions of the employment of its employees except in the ordinary course of business and with the mutual consent of the Board of Directors of the Transferee Company.

9.6 The Transferor Company shall not increase its share capital base or undertake any additional financial commitments of any nature whatsoever, borrow any amounts or incur any other liabilities or expenditure without the written consent of the Board of Directors of Transferee Company.

9.7 The Transferee Company shall be entitled, pending the sanction of the Scheme, to apply to the Central Government and other related agencies, departments and other authorities concerned as are necessary under any law for such consents, licenses, permissions, approvals and sanctions which the Transferee Company

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may require to own and operate the businesses of the Transferor Company.

10. CONSIDERATION

10.1 Upon the Scheme becoming effective and in consideration of the transfer and vesting of the entire Undertakings of the Transferor Company in the Transferee Company, the Transferee Company, shall, without any further application or deed, issue and allot at par Voting Equity Shares of Rs.10/- only (Rupees Ten Only) each credited as fully paid-up in the Capital of the Transferee Company to the Equity shareholders of the Transferor Company whose names appear in the Register of Members of the Transferor Company on the record date or to such of their respective heirs, executors, administrators or other legal representatives or other successors in title, as the case may be in the following stated proportion:

> "45 Equity Shares of the face value of Rs. 10/- each as fully paid up of the Transferee Company for every 797 Equity Shares of the face value of Rs 10/- each held in the Transferor Company. (Hereinafter, equity shares to be issued to the shareholders of Transferor Company are referred to as "New Equity Shares")."

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10.2 Any Fraction arising on issue of New Equity Shares as above, will be rounded off to the nearest integer.

10.3 In case any member's shareholding in the Transferor Company is such that on the basis of the aforesaid exchange ratio of shares, the member is entitled to a fraction of New Equity Share which exceeds one-half share, such member shall, in lieu of such fraction, be entitled to receive allotment of one New Equity Share of the Transferee Company. On the other hand, if the shareholding of any member in the Transferor Company is such that on the basis of the aforesaid exchange ratio of shares, the member is entitled to a fraction of New Equity Share which is less than or equal to one-half share, then such fraction shall be ignored and such member shall not be entitled to receive any New Equity Share of the Transferee Company in lieu of such fraction.

10.4 The New Equity Shares of the Transferee Company to be issued pursuant to this Scheme shall rank pari passu with the existing equity shares of the Transferee Company.

10.5 The issue and allotment of New Equity Shares by the Transferee Company, to the shareholders

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of the Transferor Company as provided in this Scheme is an integral part thereof and shall be deemed to have been carried out as if the procedure laid down under Section 62 of the Companies Act, 2013 and any other applicable provisions of the Act were duly complied with.

10.6 The Transferee Company shall take necessary steps to increase or alter, to the extent required, its Authorized Share Capital suitably, if required, to enable it to issue and allot the New Equity Shares pursuant to this Scheme.

11. AMENDMENT TO MEMORANDUM AND ARTICLES OF ASSOCIATION OF THE TRANSFEREE COMPANY

11.1 Capital Clause:

11.1.1 Upon coming into effect of the Scheme, the Authorised Share Capital of the Transferor Company of Rs.1,50,00,000/- (Rupees One crore Fifty Lakhs Only) as mentioned in Clause 3 above, or such amount as may be on the Appointed Date, shall be added to the Authorised Share Capital of the Transferee Company, without any further act or deed and without any further payment of the stamp duty or the registration

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fees and Clause V of the Memorandum of Association of the Transferee Company shall be replaced as under:-

"The Authorised Share Capital of the Company is is Rs. 31,50,00,000 /- (Rupees Thirty One Crores and Fifty Lakhs Only) divided into 3,15,00,000 (Three Crores Fifteen Lakhs) Voting Equity Shares of Rs. 10/- each."

11.1.2 Under the accepted principle of Single Window Clearance, it is hereby provided that the above referred change, viz. Change in the Capital Clause shall become operative from the Appointed Date by virtue of the fact that the Shareholders of the Transferee Company, while approving the scheme as a whole, have also resolved and accorded the relevant consents as required respectively under Sections 17/13, 94/61, 97/64 of the Companies Act, 1956/2013 or any other provisions of the Act and shall not be required to pass separate resolutions as required under the Act.

12. ACCOUNTING TREATMENT FOR AMALGAMATION

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The Transferee Company shall account for the amalgamation, in its books with effect from the Appointed Date, in accordance with the Pooling method prescribed under Indian Accounting Standards (Ind AS) 103, notified under the Companies Accounting Standards Rules and/or any other Act for the time being in force as mentioned in Sec. 133 of the Act, as under:

12.1 All the assets, reserves and liabilities of the Transferor Company shall stand transferred to and vested in the Transferee Company pursuant to this scheme and shall be recorded by the Transferee Company at its respective book value/carrying value.

12.2 The Transferee company shall credit to the share capital account in its books of accounts, the aggregate face value of the new Equity Shares issued and allotted under the scheme to the Equity shareholders of the Transferor Company pursuant to this Scheme.

12.3 An amount equal to the balance lying to the credit of "Profit and Loss Account" in the books of Transferor Company shall constitute the Transferee Company's free reserve as effectively as if the same were created by the Transferee Company out of its own earned and distributable profits.

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12.4 The amount of any inter-company balances and investments, if any, shall stand cancelled without any further act or deed, upon the Scheme coming into effect, and the amounts so cancelled shall not be recorded in the books of account of the Transferee Company.

12.5 The difference arising after giving effect to clause 12.1, 12.2, 12.3 and 12.4 above shall be credited to Capital Reserve by the Transferee Company as per the Pooling of Interest Method prescribed in Indian Accounting Standard-103 as mentioned in S. 133 of the Act.

12.6 In case of any difference in the accounting policy between the Transferor Company and the Transferee Company, the impact of the same till the amalgamation will be quantified and adjusted against the Profit & Loss Account of the Transferee Company to ensure that the financial statements of the Transferee Company and Transferor Company reflect the financial position on the basis of consistent accounting policy.

12.7 Notwithstanding the above, the Board of Directors of the Transferee Company in consultation with its Auditors, is authorized to account any of these balances in any manner whatsoever as may be deemed fit.

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the law or which may be found to be otherwise desirable for settling any question, doubt or difficulties that may arise for implementing and/or carrying out the Scheme and may do all such acts, deeds, matters and things as may be necessary, desirable or expedient for putting the Scheme into effect.

15.2 For the purpose of giving effect to the Scheme or to any modification thereof, the Board of Directors of the respective Transferor Company and/or the Transferee Company are hereby authorized to give such directions and/or to take such steps as may be necessary or desirable including any directions for settling any question or doubt or difficulty whatsoever that may arise.

16. SCHEME CONDITIONAL ON APPROVALS / SANCTIONS

The Scheme is conditional on and subject to the following approvals:-

16.1 The approval to the Scheme by the requisite majority of the members and creditors, as may be applicable in case of the respective companies.

16.2 The sanction of the Hon'ble National Company Law Tribunal under Sections 230 and/ or 232 of the said Act, in favour of the Transferor

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Company and the Transferee Company and to the necessary Order or Orders under Section 232 of the said Act, being obtained.

17. SAVING OF CONCLUDED TRANSACTIONS

The Transfer of undertaking under Clause 4 above and the continuance of proceedings by or against the Transferor Company above shall not affect any transaction or proceedings already concluded by the Transferor Company on or after the Appointed Date till the date of sanction of the scheme, to the end and intent that the Transferee Company accepts and adopts all acts, deeds and things done and executed by the Transferor Company in respect thereto as done and executed on behalf of itself.

18. EXPENSES CONNECTED WITH THE SCHEME

All costs, charges and expenses of the Transferor Company and Transferee Company respectively in relation to or in connection with this Scheme and of carrying out and completing the terms and provisions of this scheme and/or incidental to the completion of the said Amalgamation of the said Undertaking of the Transferor Company in pursuance of this Scheme, whether identifiable or not with respective Transferee and Transferor Company, shall be borne and paid by the Transferee Company alone.

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19. MISCELLANEOUS PROVISIONS

19.1 The Scheme, shall operate and be effective from the Appointed Date, even though the date of filing of the copy of the order(s) received from the Hon'ble National Company Law Tribunal with the Registrar of Companies, Gujarat, upon sanction of the scheme by the Hon'ble National Company Law Tribunal may be subsequent.

19.2 Until the scheme is sanctioned, the Transferor Company and Transferee Company, shall continue to hold their Annual General Meeting and other meetings in accordance with the relevant laws and shall continue to comply with all their statutory obligations.

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Annexure "B"

SACHIN HEALTH CARE PRIVATE LIMITED

Survey No. 91, Opp. Navin Fluorine,
Udhna Navsari Road,
Bhestan, Surat - 395023.
Tel. + 91 261 2897801
Fax : + 91-261-2892364
E-mail: vinod@colourtex.co.in

CIN: U24100GJ2015PTC085405

Schedule

PART I

PARTICULARS OF FREEHOLD PROPERTIES

(I) LAND

There are no Freehold land

(II)BUILDING

There are no Building

PART II

PARTICULARS OF LEASEHOLD PROPERTIES

Sr.No.	Property Description	Area(Sq.MTR.)
1	PLOT NO. X-1 (SUR-48 Gabheni) Sachin GIDC Estate, Surat (Gujarat)	108657.00

PART III

A. PARTICULARS OF BANK ACCOUNTS:

BANKS ACCOUNTS

SR. NO.	BANK & BRANCH	TYPE OF ACCOUNT	ACCOUNT NO.
1	IDBI Bank Limited Forum Building, 2nd Floor, Between Canopus Shopping Mall and Citi Bank, Surat-395007	Current	0384103000003995
2	IDBI Bank Limited Forum Building, 2nd Floor, Between Canopus Shopping Mall and Citi Bank, Surat-395007	Current	0051102000122931

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Udhna Navsari Road,
Bhestan, Surat - 395023.
Tel. + 91 261 2897801
Fax : + 91-261-2892364
E-mail: vinod@colourtex.co.in CIN: U24100GJ2015PTC085405

B. REGISTRATION WITH VARIOUS AUTHORITIES UNDER RESPECTIVE LAWS, BODIES ETC. :

Name of Authority	Nature of registration	Registration Number
INCOME TAX DEPARTMENT	PAN	AAWCS5327B
INCOME TAX DEPARTMENT	TAN	SRTS20170D
REGISTRAR OF COM PANY`S	CIN NO.	U24100GJ2015PTC085405
GST DEPARTMENT	GST	24AAWCS5327B1ZA
FOOD & DRUG DEPARTMENT	DRUG LICENCE NO.	20B ss/2331, 21B ss/2290

C. VEHICLES:

There are no Vehicles

SIGNATURE OF THE DIRECTOR

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